

Federal Courts

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Class Meetings:

T | Th 10:15-11:45 AM

Room 416

Blackboard:

<https://tinyurl.com/3pjejjkc>

Office Hours:

T 3:00-4:45 PM

Room 427

or by appointment via

smith-morgan@campbell.edu

I. OVERVIEW

Federal Courts sits at the intersection of Constitutional Law and Civil Procedure, taking the “constitutional” parts of Civil Procedure—especially jurisdiction and the doctrines related to federalism—and cranks them up to 11. Issues covered in Fed Courts, like standing, ripeness, mootness, abstention, remedies, sovereign immunity, and the relationship between state and federal courts, are frequent subjects of litigation. Mastery of them is essential for students considering a practice that involves routine federal litigation. The course should also be considered indispensable for anyone considering a federal court judicial clerkship.

While the focus of this course will be primarily practical—that is, on *doctrine* that will be useful to you as a practicing lawyer—we will also see that this doctrine is deeply informed by fundamental principles. Law is about power—its legitimacy, exercise, and constraint—and Federal Courts is fundamentally about *what* power federal courts have, *how* they exercise it and *why*, and how it *interacts* with other powerful institutions in the American constitutional system, including the courts’ co-equal branches as well as the states and their courts.

Our course will necessarily be brisk and laser-focused on the most important aspects of the Article III judicial power and the role it plays in the constitutional structure. Given the constraints—you could teach a three-credit class just on standing alone—we will have to make some sacrifices in coverage. Specifically, we *will not* separately cover Section 1983, which is the subject of a separate Constitutional Litigation class offered by Professor Kent but will be implicated by many of our cases, and our discussion of *habeas corpus*, which is simply too difficult to cover in our time constraints, will be introductory.

II. PRIMARY COURSE OBJECTIVES

Substantive:

- Articulate the precise boundaries of Article III power and the distinction between constitutional and prudential limitations.

- Navigate the doctrines that govern the relationship between federal courts and state sovereignty.
- Understand the abstention doctrines that govern the refusal of federal courts to hear cases over which they have jurisdiction.
- Evaluate the relationship between Congress and the federal courts.

Skills:

- Synthesize overlapping doctrines governing the justiciability of a case.
- Think strategically about the impact of non-substantive issues in a case.
- Recognize and critique underlying theories of federalism and the judicial power that drive judicial decision-making in cases in the federal courts.

III. MATERIALS

Required Materials: The casebook for this course is **FEDERAL COURTS: A CONTEMPORARY APPROACH**, by Doernberg, Lee, and McConville (7th ed.). Page numbers in reading assignments will refer to the Seventh Edition. Because federal courts issues are actively the subject of much litigation, we will have to supplement the textbook with additional readings made available via Blackboard.

Because the assessment for this course will come primarily via an **open-book, open-notes** final exam that will lock your laptop from accessing other material, *see infra*, I recommend a physical copy of the textbook.

For students interested in a hornbook, Chemerinsky's is extraordinarily useful.

IV. CLASS PARTICIPATION & POLICIES

Attendance: Regular attendance is critical. Campbell Law's default attendance rule is that "no student may miss more than 20% of the class meeting sessions regardless of the reason for the absences."¹ If you believe that extenuating circumstances will require your absence from more than 20% of class meeting sessions, you should speak in the first instance with Dean Hinds-Glick's office. If you are going to miss class, you **must** email me ahead of time to let me know. I do not need to know *why* you are absent from class (there is no distinction between excused and unexcused absences), just that you will not be able to attend.

Technology: I am not going to ban the use of laptops, tablets, etc. in the classroom. Some of you may require them for accessibility reasons, and I think that implementing a flat ban with the possibility of exceptions unnecessarily "outs" people who need those accommodations. That said, I will present you with my (informed) advice, which is also confirmed by the weight of the empirical

¹ <https://law.campbell.edu/learn/academic-program/grading-information-and-academic-standards/>

evidence: **Taking notes on your laptop is MUCH worse for comprehension and memory than taking notes by hand.**² So, to the extent you are able to take notes by hand, I **strongly** recommend doing so. Later inputting hand-written notes into a running computer file is also an excellent study and review method, one I used successfully in law school.³

I ask that if you do use laptops in class, do not do anything on them that may distract your peers. If the abuse of this privilege becomes an ongoing problem, I reserve the right to amend the laptop policy to generally prohibit them. Obviously, please make sure cell phones or anything else that makes noise is off or silenced prior to class. Finally, absent an accommodation, you may not make any audio or video recording of the class. I will record the class and make the recordings available to you.

Participation: We will collectively have in-depth conversations about the doctrines we're studying, which can take discussion and fleshing out in order to understand. I am not going to cold-call, but there will be a robust participation bonus available at the end of the semester.

Courtesy, Respect, and Inclusion: Law school is a professional environment. I will endeavor to treat you like adults treat one another in a professional environment, and expect the same from you towards me and your peers. Additionally, as a lawyer, it is necessary that you develop the ability to engage in rigorous discussion, argumentation, and even criticism while remaining civil and respectful. I hope we can collectively commit to some basic principles:

- (1) Grace and understanding towards one another as we grapple imperfectly with occasionally challenging and controversial topics;
- (2) Constant critical self-examination of our own biases, assumptions, and beliefs about the law and the world;
- (3) Epistemological modesty; and

² See, e.g., Horbury & Edmonds, *Taking class notes by hand compared to typing: effects on children's recall and understanding*, 35 J. RES. CHILDHOOD EDUC. 55 (2021) ("[C]hildren who handwrote notes had greater conceptually understanding one week after viewing their lesson, compared to those who typed notes."); Aragon-Mendizabal et al., *A Comparative Study of Handwriting and Computer Typing in Note-taking by University Students*, 24 COMUNICAR 101 (2016) ("[H]andwriting enhanced students' grades when performing memory tasks."); Mueller & Oppenheimer, *The Pen Is Mightier Than The Keyboard: Advantages of Longhand Over Laptop Note Taking*, 25 PSYCH. SCI. 1159 (2014) ("In three studies, we found that students who took notes on laptops performed worse on conceptual questions than students who took notes longhand. . . [L]aptop note takers' tendency to transcribe lectures verbatim rather than processing information and reframing it in their own words is detrimental to learning."). But cf. Artz et al., *Taking notes in the Digital Age: Evidence from Classroom Random Control Trials*, 51 J. ECON. EDUC. 103 (2020) (suggesting that "the source of the negative outcomes may originate with the student," in that "students with lower impulse control may be more likely to choose to take notes on the computer" and wind up distracted).

³ See Flanigan et al., *Computer versus longhand note taking: Influence of revision* 51 INSTRUCTIONAL SCI. 251 (2023) (finding that longhand note-takers "added three times as many complete ideas to their notes during revision" and that such revisions "predicted achievement").

- (4) Other than as occasionally necessary on my part for instructive reasons, avoidance of sophistry and pedantry.

Collectively, these principles mean we should speak and listen respectfully and honestly; reserve the right to change our own minds and extend the same courtesy to others; and provide allowances for what we perceive as mistakes, both substantive and rhetorical.

Finally, if you, for any reason, prefer to be referred to in a manner other than what is listed in the official system, please communicate that to me as you see fit.

Artificial Intelligence: As discussed *infra*, the use of large language models (LLMs) or any other AI program is strictly prohibited on the final exam. Apart from that, you can make use of these tools as you see fit. However, a word of caution: just as purchasing and relying exclusively on commercial case briefs is unlikely to serve you well, outsourcing your thinking and analysis to an LLM is only going to impede your intellectual development in a way that is definitively *not* going to help you on the final exam or in your career:

You are currently undertaking the education you need to become proficient lawyers. That process is slow and difficult, because being a proficient lawyer—a professional whom people can trust to defend and assert their rights in a society governed by law—is not an easy thing to do. . . . Your legal education consists in part in developing the knowledge and skills that allow you to perform these tasks. . . If you are outsourcing that work to a technological tool *now*, what value are you preparing yourself to provide to anyone *later*? If someone in the future tries to take away your clients’ rights, their property, their liberty, or their life, based on a lie, how would you ever be in a position to prevent it? Why would anybody ever seek your help, let alone be willing to pay you for it?

This is not to say that in the hands of a legal professional . . . a technology that speeds up some of the more routine tasks of legal work would lack value. It is merely to say that *you are not there yet*. You are in law school to start building the skills and knowledge that will put you in a position to know which tasks can be delegated and which you need to do yourself . . . There is no short cut to that kind of professional expertise; it is something that you build with time and effort. . . And if you aren’t learning how to do that work now, when only your grades are at stake, you are not going to be able to do that work later in your career, when real people will be depending on you to defend their rights.⁴

⁴ Jeremy Sheff, *Generative AI in the Law School Classroom*, JeremySheff.com (June 2, 2025), <https://jeremysheff.com/2025/06/02/generative-ai-in-the-law-school-classroom/>.

Make-up Classes: We do not have any “spare time” built into the semester; there is simply too much to cover. In the event of a snow day or other reason for the physical closure of the law school on a day a class is scheduled, our first recourse will be to hold class via Teams at the regular time. If that is not possible, and if for any reason I am not able to attend a regular class session, we will schedule a make-up class.

V. GRADING

Final Exam: Your grade in this class will be 100% determined by your performance on an **in-class final exam**. More details about the exam will be forthcoming later in the semester, but you can expect the bulk of the points to come from one or more multi-issue issue-spotters. I will post samples and past exams at an appropriate time.

The exam will be open-book and open-note. You are welcome to bring *any* printed materials into the exam with you, including textbooks, supplements, and outlines (your own and/or those of others). Unfortunately, the material **does have to be printed**. You will not be able to exit the exam software to access material stored electronically on your laptop, and your other devices will need to be set to airplane mode. **You are not permitted to access any *new* information once you have received the exam.** Your work on the exam must be solely your own. You cannot use an LLM or other AI for help.

You may not share answers or discuss the exam with others until the overall exam period at Campbell has ended, as others may be taking the exam at different times. Additionally, I will not be able to discuss the exam until after you have received your grades. If you have questions while taking the exam, they must first go through the Dean’s office, who will contact me if necessary.

If you require an accommodation, that is, again, an issue in the first instance for Director Chilausky. In order to maintain anonymity, you should *not* discuss exam accommodations with me.

Participation: I may, at my discretion, assign up to 5 bonus points (out of a total of 100 for the course) for participation over the course of the semester. This reflects all aspects of course participation—office hours attendance, in-class participation, and engagement on Blackboard’s discussion forum.

Curve: Per Campbell policy, this course has a mandatory median of 83-85. After curving the exams to that median, I may additionally individually adjust scores slightly to reflect the levels of competence identified by Campbell’s grade “bands,” which, for example, arbitrarily make the one-point difference between a 74 and a 75 matter more than the one-point difference between 73 and 74.

VI. COMMUNICATION

I can be reached at my email (smith-morgan@campbell.edu). I will generally communicate to you via email or Blackboard. It goes without saying (but I will say it anyway) that we are all adults in a

professional environment and our use of these communication mediums should reflect that. Additionally, as adults in a professional environment, it is critical that you regularly check your email.

VII. COURSE EVALUATIONS & FEEDBACK

Per Campbell Law policy, we will dedicate some class time near the end of the semester to allow you to fill out course and instructor evaluations. These evaluations are anonymous, and you should not discuss them with me.

Additionally, you should feel comfortable approaching me with constructive feedback. I may not always be able to make requested changes, but I can do my best to explain why I do what I do and why the change may not be possible.

VIII. AMENDMENTS

The syllabus might need to change based on the needs of the class. I reserve the right to make any changes to the syllabus, including to course policies, important dates, or reading schedules. I will announce any changes as early as possible and distribute revised syllabi as necessary.

IX. CAMPBELL UNIVERSITY POLICIES

Disability Services: Students in the School of Law with documented disabilities may request reasonable accommodation(s) by contacting Mrs. Meredith Chilausky, Director of Academic Success & Accessibility, by email at chilausky@campbell.edu or by phone at (919) 865-4685. A health condition may rise to the level of a disability if it substantially limits one or more major life functions, one of which is learning. A disability may be temporary or ongoing. Medical documentation is required to support all requests and must be from a relevant mental health or medical provider with knowledge of the disability. Appointments can be scheduled through the Disability Services website at Campbell University or with Director Chilausky at <http://www.calendly.com/chilausky>.

Counseling Services: All Campbell University students are eligible to receive free, confidential counseling via in-person and virtual consultations, groups, or individual sessions. Students in the School of Law may request an appointment by contacting [Ruth Cooper](#). If you are concerned about a fellow student, please complete a [Request for Support](#).

(Law school, much like the practice of law, can be a significant stressor. Almost every practicing lawyer I know regularly attends therapy, and I have never known anyone to regret it. Mental health requires preventative and maintenance healthcare just like physical health. I urge you to start this practice now if you have not already.)

Nourish Market: The Campus Pantry is open to students and staff experiencing food insecurity, offering a space for shoppers to choose their food and personal hygiene items. With the main

location at the Wallace Center and smaller satellite locations, there are multiple options to shop. Satellite Pantries are located in Counseling Services, Wiggins Memorial Library, Bob Barker Hall and Pat Barker Hall (for residents). For more information on location hours and frequently asked questions please check our [webpage](#). For assistance and questions, contact Rev. Morgan Pajak at pajak@campbell.edu or 910-814-4769.

(If you are a parent and need to bring a child to class so as to not miss class yourself, you may—please reach out to me to let me know.)

Title IX, Title VI, and Protected Class Status: Campbell University is committed to equality of educational opportunity. Campbell University does not permit discrimination or harassment in our programs and activities on the basis of race, color, national origin, sex, age, religion, or disability, genetic information, veteran status, military status and any other characteristic protected by law, except where exemption is appropriate and authorized by law.

Students who believe they have been subjected to sex or pregnancy discrimination, sexual harassment, or sexual violence, (*i.e.*, domestic violence, dating violence, stalking, and sexual assault) in violation of Title IX of the Education Amendments, may report these concerns to the Director of Compliance and Title IX Coordinator, Danielle Evans at 910-893-1217, titleix@campbell.edu, or via the Campbell's online [Title IX Sexual Harm and Sex Discrimination Reporting Form](#) or scheduling a Supportive Measures meeting directly with Danielle at calendly.com/dani-evans.

Students who believe they have been subjected to race, color, or national origin discrimination or harassment in violation of Title VI of the Civil Rights Act, may report these concerns to the Office of Student Life & Christian Mission through the online [Bias Incident Reporting Form](#), or scheduling a Supportive Measures meeting directly with Danielle at calendly.com/dani-evans for more information.

Other protected class status discrimination and harassment based on age, religion, disability, genetic information, veteran status, and military status, may be reported to the Office of Student Life & Christian Mission through the online [Bias Incident Reporting Form](#).

Campbell University prohibits retaliation by any student and/or employee against anyone who reports or participates in a subsequent investigation related to discrimination and harassment described above.

For more information please visit [Campbell University's Title IX webpage](#).

Safety and Security: The health and safety of our community is of utmost importance. Please familiarize yourself with your classroom and building surroundings, emergency information posters, and make sure you have registered your cell phone number with CU Notify for timely

warnings and emergency alerts. For more information visit: [Emergency Preparedness](#). To report concerning behavior or any other safety concerns, please visit: [See Something Say Something](#).